

26STCP01163 26STCP01163

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-09-01

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Case Number: 26STCP01163 Hearing Date: September 1, 2026 Dept: 735

Schild v. Floyd, et al.

Plaintiff's Motions to Compel Further Responses to Set One

Discovery by Defendant David Ryan Floyd and Defendant RW2, LLC.

BACKGROUND

On

March 23, 2026, Plaintiff Walter Schild filed a complaint against Defendants David Ryan Floyd and RW2, LLC. Plaintiff, an assignee of entity Dilson & Walter, LLC ("D&W"), alleges D&W is a 40% shareholder and Floyd is a 60% shareholder of RW2. RW2 operates a restaurant and bar. Plaintiff alleges that Floyd wrongfully removed D&W as a 40% shareholder on tax documents beginning in 2023 and failed to pay D&W distributions thereafter. Plaintiff also alleges that Floyd has made distributions of funds from RW2 for personal use, wrongfully paid himself and entities he controls, and engaged in misconduct relating to loans. On May 13, 2026, Floyd filed a cross-complaint against, among others, D&W and Walter Schild.

Plaintiff

served an initial set of discovery on RW2 on April 12, 2026, and on Floyd on April 22, 2026. (Schild Decl., ¶ 3.) RW2 served objection-only responses on June 19, 2026, and Floyd served objection-only responses on June 30, 2026. (Schild Decl., ¶ 5.) Plaintiff filed the instant motions to compel further responses on July 6, 2026.

DISCUSSION

Plaintiff

moves to compel further responses of Defendants on the grounds both defendants failed to serve substantive responses to the 30 Special Interrogatories (“SROGs”), the 28 Form Interrogatories (“FROGs”), admitted nothing and denied nothing in response to the 35 Requests for Admission (“RFAs”), and served no statement of compliance and produced no documents in response to the 22 Requests for Production (“RPDs”). (Mot., p. 4.) Plaintiff further argues that Defendants’ objections are without merit, and good cause supports the documents requested. (Mot., p. 5.)

In

opposition, Defendants argue the instant motions are moot, as Floyd has agreed to and will provide responses to the discovery requests at issue, and RW2 has provided substantive responses. (Floyd Opp., p. 3; RW2 Opp., p. 5.) Regardless of the mootness, Floyd argues Plaintiff failed to properly serve all parties that have appeared in this action, and that Plaintiff’s requests are deficient. (Floyd Opp., pp. 4-5; RW2 Opp., p. 5.)

In

reply, Plaintiff argues service of supplemental responses does not moot a motion to compel further responses. (Rep., p. 3.) Plaintiff contends the responses remain deficient. (Rep., pp. 3-6.)

i.

Mootness

First,

Defendant’s supplemental responses do not moot Plaintiff’s motions. A responding party’s service of belated responses after a motion to compel has been filed does not divest the court of authority to hear and rule on the motion; whether to proceed is committed to the court’s sound discretion. To hold otherwise would allow a party to serve evasive, last-minute responses and thereby unilaterally deprive the trial court of authority to hear the motion. Plaintiff has narrowed each motion to specific requests he contends remain deficient after the further responses, and to the issue of sanctions. The Court therefore reviews Plaintiff’s motions and Defendants’ oppositions on the merits as to the narrowed set of requests and to sanctions.

ii.

Floyd’s Responses

Plaintiff has narrowed the motion to sixteen requests: RFAs Nos. 23, 24, 26, 34, and 35, RPDs Nos. 1, 2, 16, 17, 18, and 21, SROGs Nos. 10, 11, 17, 18, 21, 22, 26, 29, and 30, and FROGs No. 2.6. (Plaintiff's Notice of Defendant David Ryan Floyd's July 24, 2026 Further Responses., p. 2.)

a. RFAs

Plaintiff moves to compel further responses to RFAs Nos. 23, 24, 26, 34, and 35. Floyd's responses to RFA Nos. 23, 24, 26, 34, and 35 are insufficient as Floyd has not stated a reasonable inquiry has been made regarding the lack of information or knowledge, and Floyd neither admits nor denies the matters, pursuant to Civil Procedure section 2033.220.

b. RPDs

Plaintiff moves to compel further responses to RPDs Nos. 1, 2, 16, 17, 18, and 21. Floyd's responses are insufficient. Plaintiff has shown good cause justifying the requested documents. The sought information is relevant to Plaintiff's claims concerning RW2's ownership and the transfer of RW2 funds to Floyd. With this request Plaintiff is seeking bank statements, books, records, and tax statements. Floyd fails to affirm a diligent search and reasonable inquiry has been made in an effort to comply with Plaintiff's request. Further, Floyd's objections on the grounds of vagueness and ambiguity are meritless. A party responding to an interrogatory is obligated to attempt a good-faith response even where the interrogatory contains some ambiguity. Additionally, the requests are not compound, as they each address a single subject.

c. Interrogatories

Plaintiff moves to compel responses to SROGs Nos. 10, 11, 17, 18, 21, 22, 26, 29, and 30. Plaintiff moves to compel further responses to FROGs No. 2.6. Floyd's responses are insufficient. The court finds the interrogatories at question are not overbroad. Objections on the grounds of calls for legal conclusion are inapplicable here. An

interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial. (Code Civ. Proc. § 2030.010, subd.

(b).)

Further, the rule against compound interrogatories is to prevent evasion of the statutory limit on the number of interrogatories that one party may propound to another. This properly applies only where more than a single subject is covered by the question. Here, the SROGs and FROGs at issue contain a single subject. Finally, to the extent Floyd asserts privilege, Floyd must state the factual ground to assert the privilege and produce a privilege log. (Code Civ. Proc., § 2031.240, subd. (c).) Floyd has not done so here.

Based

on the foregoing, the Court grants Plaintiff's motion to compel Floyd's further responses to RFAs Nos. 23, 24, 26, 34, and 35, RPDs Nos. 1, 2, 16, 17, 18, and 21, SROGs Nos. 10, 11, 17, 18, 21, 22, 26, 29, and 30, and FROGs No. 2.6.

d. RW2's Responses

Plaintiff has narrowed the motion to sixteen requests: RFAs Nos. 28 and 29, RPDs Nos. 14, 22, 27, and 34, SROGs Nos. 5, 6, 12, 14, 15, 16, 18, 22, and 25, and FROGs No. 17.1 (Rep., p. 3.)

a. RFAs

Plaintiff moves to compel responses to RFAs Nos. 28 and 29. RW2's responses to RFA Nos. 28 and 29 are insufficient as RW2 has not stated a reasonable inquiry has been made regarding the lack of information or knowledge, and RW2 neither admits nor denies the matters, pursuant to Civil Procedure section 2033.220.

b. RPDs

Plaintiff moves to compel responses to RPDs Nos. 14, 22, 27, and 34. RW2's responses are insufficient. Plaintiff has shown good cause justifying the requested documents. The sought information is relevant to

Plaintiff's claims concerning RW2's ownership and the transfer of RW2 funds to Floyd. With this request Plaintiff is seeking bank statements, books, records, and tax statements. RW2 fails to affirm a diligent search and reasonable inquiry has been made in an effort to comply with Plaintiff's request.

c. Interrogatories

Plaintiff moves to compel responses to SROGs Nos. 5, 6, 12, 14, 15, 16, 18, 22, and 25. Plaintiff moves to compel further responses to FROGs No. 17.1. RW2's responses are insufficient. The court finds the interrogatories at question are not overbroad. Further, the rule against compound interrogatories is to prevent evasion of the statutory limit on the number of interrogatories that one party may propound to another. Here, the SROGs and FROGs at issue contain a single subject.

Based on the foregoing, the Court grants Plaintiff's motion to compel RW2's further responses to RFAs Nos. 28 and 29, RPDs Nos. 14, 22, 27, and 34, SROGs Nos. 5, 6, 12, 14, 15, 16, 18, 22, and 25, and FROGs No. 17.1.

e. Sanctions

Plaintiff requests \$1,522.66 against each Defendant and its counsel, jointly and severally, consisting of \$1,449.25 for a court reporter fee and \$73.41 in filing, copying, and service costs. Plaintiff provides no support for the estimated \$1,449.25 fee, only estimating the amount. The Court therefore denies the estimated fee without prejudice. The Court grants awards Plaintiff a total of \$146.82, consisting of the \$73.41 per motion.

CONCLUSION

The Court grants in part Plaintiff's motions to compel RW2's and Floyd's further responses as to the narrowed scope laid out in Plaintiff's reply. Defendants are to serve further verified, code-compliant responses within 20 days. The motion is otherwise denied as to the remaining requests already substantively answered.

Sanctions

are awarded to Plaintiff and against Floyd in the amount of \$73.41, payable within 30 days.

Sanctions

are awarded to Plaintiff and against RW2 in the amount of \$73.41, payable within 30 days.

Plaintiff

shall give notice.